

infliction of emotional distress related to conduct on, or directly above, plaintiffs' property. (*Id.*, ¶¶ 29–63.) Lastly, plaintiffs allege defendants failed to maintain their easement across the plaintiffs' property by allowing heavy trucks to damage the paved driveway. (*Id.*, ¶¶ 24–28.)

On July 18, 2025, defendants filed a cross-complaint alleging nuisance and quiet title claims related to the driveway easement.

In opposition to the motion to compel, plaintiffs cite the California constitutional right to privacy. (Cal. Const., art. I, § 1.) A party asserting a privacy right under the California Constitution “must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 532 [citing *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35].) The requesting party “may raise in response whatever legitimate or important countervailing interests disclosure serves,” and the party seeking protection “may identify feasible alternatives.” (*Williams*, 3 Cal.5th at p. 532.) “A court must then balance these competing considerations.” (*Id.*) Even though plaintiffs contend that the inspection (without any entry into any structures on their property) is facially protected by the right to privacy, “[t]he right to privacy . . . is not absolute.” (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1199 [citing *Hill*, 7 Cal.4th at 37].)

In this case, the court has balanced plaintiffs' reasonable expectation of privacy with defendants' interests in discovery that is relevant and probative to the parties' claims and defenses. The court concludes that defendants have failed to demonstrate good cause for an inspection of the property in its entirety and less intrusive means of obtaining relevant information exist. (Code Civ. Proc. § 2031.310.(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The court notes that although the declaration of Elisabeth Janiga speaks to alleged shooting range activity on plaintiffs' property, she appears to be referring to activity occurring within the last several months. There is no indication from the evidence submitted in connection with this motion that the alleged firearm activity on plaintiffs' property predates the trespass or invasion of privacy alleged in the complaint. Defendants do establish good cause to permit inspection of the easement located on Chapparal Lane, as well as the gate referred to in the parties' pleadings. (M. Janiga Decl., ¶¶ 2-6.)

Based on the foregoing, the motion is granted in part as to the driveway easement and the gate thereon. The motion is otherwise denied. The parties' requests for sanctions are denied.

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The demurrer to complaint and motion to strike portions of the complaint are dropped as moot in light of the first amended complaint filed July 7, 2026.